



## DISCLAIMER LETTER

I, **SALES EXEC AMIT**, hereby acknowledge and affirm the following in connection with my employment with **SP Researchvia Pvt Ltd.**

### Voluntary Employment

I confirm that my employment with SP Researchvia Pvt Ltd is entirely voluntary. I understand and acknowledge that I have not been forced, coerced, or pressured in any way to join or continue my employment here. I freely chose to be employed with the company based on my own decision.

### Criminal Record Declaration

I declare that I do not have any criminal cases or legal charges against me related to share market activities, securities fraud, insider trading, or any other financial misconduct. I affirm that my background is clear, and I have never been involved in any illegal or unethical activities related to the share market or research analyst services.

### Acknowledgement of Employment Terms

I further confirm that I am fully aware of the terms and conditions of my employment with SP Researchvia Pvt Ltd including the nature of the research analyst services provided by the SEBI, and I have freely agreed to the same. I understand the responsibilities and expectations of my role, as outlined in my employment agreement.

By signing below, I acknowledge that the information provided is true and accurate to the best of my knowledge and that I accept and agree to the terms mentioned above.

Employee's Name & Signature **SALES EXEC AMIT**.



#### ANNEXURE - 1 Personal Particulars:

You will keep us informed of any change in your residential address, your family status or any other relevant particulars. You would also let us know the name and address of your legal heir/nominee.

#### Job Description:

- a) Generate clients for subscription of our research products will generate the business as per target assigned by authority.
- b) Convince clients to purchase the Products & Services of SP Researchvia PVT LTD.
- c) Assist in development of systems and processes of the Department. Customer Relationship Management.
- d) This will include documentation, reporting, etc. or as per the instruction given by Team Leader or Management.

**Timings:** Your reporting timing will be **8:55 am to 6:00 pm** including 30 minutes for lunch break. If you take unapproved leave, in such case double deduction will be applied.

**Note:** - In case of late coming after 09.00 am it will be considered a late mark in your attendance. (Max. 60 minutes of late coming are allowed in a rolling period of a month after 60 minute late coming will be treated as half day and after every 30 minutes of late coming half day will deducted).

#### Job Assignments Reporting:

In your assignment you will be responsible for the department allotted and the duties as more particularly laid down in the job description for this position. You will directly report to the Manager/Team Leader nominated by the Management. You will work at a high standard of initiative, creativeness, efficiency and economy in the organization. The nature of work and responsibilities will be assigned and explained to you by your senior from time to time.

#### Induction & Training:

Your induction and orientation period will be **7 days** from your date of joining. Induction sessions will be an off role job, your full 'n' final job responsibility will be handed over to you after completion of a 7 days session in the organization.

This amount will be held with the company for a period of bond six month from the date of your taking up employment and payable to you in full upon completion of the above said period.



The company will provide you extensive training during the first Three months of your employment with us and expects you to return the investment made on this training in the form of personal value addition to the company. The training materials provided to you are property of the company and confidential information. Carrying the materials outside the company or disclosing them to anyone other than employees of the company is a breach of trust and will result in immediate forfeiture of the holding amount and termination of employment without notice.

#### Salary:

Your monthly carry home salary will be directly credited to your bank account authorized by the company. The salary pay day is the **7<sup>th</sup> or 10<sup>th</sup>** of the subsequent month. If a pay day falls on a holiday, employees will be paid on the next working day preceding the holiday. If your attendance is less than 15 days in a month, the salary for that month will be carried forward to next month and added to the salary of the following month.

The amount of a person's salary is a confidential matter between that employee and the management. It is based upon a number of considerations such as the person's skill and experience at the time of hire, level of the job to which the employee is assigned, and the level of the person's performance. Because of these various considerations unique to each employee, individual salaries should not be discussed and should be confidential in all matters. Breach of confidentiality may result in disciplinary action on immediate basis.

#### Bond

You are bound with the company for **6 Month** and you can't leave the company in your bonding period. However if you want to breach of Service Contract you will have to compensate the company by an **amount Rs.25000/-** subject to company agreeing to relieve you against this payment. For this you need to submit a cheque which company can present against you in case of breaching the bond.

#### Transfer

During your employment with the company, the company may at any time at its sole discretion, transfer or dispute or depute to any other departments of the company or to any division, subsidiary, associate or affiliate of the company in India or abroad.

#### Confirmation

You will be on training for a period of 3 months from the date of your joining, at the end of which, your final confirmation will be in writing to be on the permanent rolls of the company after 3 months, if your services are found satisfactory.

SP Researchvia PVT.LTD. reserves the right to reduce/dispense with or extend your training period at its absolute discretion. If the exigencies of work required, SP Researchvia PVT. LTD, may not relieve you earlier then the expiry of the entitled period of notice. It shall, however, be open to SP



Researchvia PVT.LTD to accept your resignation with effect from any date earlier than the one offered by you in the resignation letter.

### **Performance Appraisal and Increments**

Reviews and salary increments are based on your performance during the employment period in the company. All full- time regular employees are eligible for an annual or periodical performance review and consideration for a merit pay increase as per the review guidelines policy of the organization. Merit increases are not guaranteed and are based on individual's performance and key criteria preset in Policy and other criteria's set in Feedback received by the Department Head.

Increments will be based upon your performance and you will be entitled to the same if your performance is found to be satisfactory during the time of service in terms of efficiency, regularity and punctuality. Increments will be withheld if your performance is unsatisfactory.

### **Performance Improvement Plan**

PIP is a set of explicit goals given to an employee to meet. These goals are usually given as a result of some failure, either dramatic or systematic on part of the employee. Any associate who does not perform to the given standards/targets set monthly will undergo a discussion with his /her superior and HR in order to find out the reasons for having not performed well. He/she would go through PIP for 1 month (Review Period) which would help him/her to improve the performance and match the standard.

### **Notice Period:**

You are required to complete your minimum tenure of Notice Period with 1 Month of written notice before leaving the job giving detailed reasons for your leaving, and a legal undertaking for sticking to the notice period terms and conditions.

During your notice period, you need to fulfill the minimum standard criteria prescribed to you; no pending client compliance should be found; misconduct or any kind of absenteeism, any other disciplinary concern may result in excess deduction or hold or lapse of settlement amount.

You are instructed to hand over all the company assets like: identity card(if allotted), access card (if allotted), working files (Soft

Copy), Client details, key responsibilities and status of your task till date and any other reports related to your profile to your Senior Authority

You are required to furnish 'No Objection Certificate' before your dues are finally settled. Kindly note that the shortfall of days in the notice period will be a breach of agreed terms and conditions and in such case the company will not be liable to pay any dues thereof.

In case of above mentioned any misleading activities found or the exit formalities not completed as per exit policy, The company will not be liable to pay the settlement amount.



### Separation

**Resignation:** If you decide to resign from the company before completion of the bonding period you forfeit the holding amount and no claim whatsoever will be entertained in this regard.

In the event that you decide to leave the company after a period of bonding period the following shall apply as is the case: - You will be required to give at least one month notice of resignation to the company and need to complete the exit process as per Exit Policy. If not, you are required to pay to the company one month's salary in lieu of the notice or you will forfeit the amount in holding with the company.

SP Researchvia PVT. LTD is fully authorized to relieve you at any time during the period and should decide to do so; you are not entitled to your last working month gross salary.

**Abscond:** If any employee remains absent from work without any reasonable explanation and leave approval for more than 3 working days will be declared as absconded. It may result in termination of services due to absconding without any notice.

**Termination:** SP Researchvia PVT LTD has the right to terminate your employment without notice or payment of salary in lieu thereof if due to disciplinary reasons as per book of records of code of conduct of the Company Policy.

**Retirement:** You will automatically retire from the services of the company on attaining the superannuation age of 60 yrs.

**Rejoining:** Where an employee needs a break for more than 7 days in a month due to some personal work or it can be a marriage, sudden demise in a family, accident or injury, health issues and so on. Even if the employee has resigned due to some reasons and wants to rejoin the organization again. He/She can request for Rejoining as per Rejoining policy prescribed. If an employee comes under a rejoining category i.e. his/her earlier duration benefit with SP Researchvia PVT LTD will be totally **Nil** which means all the benefits applicable will be zero.

### Zero Tolerance Policy:

**Any Act or Omission On The Part Of An Employee Which Is A Breach Of Any Duty, Obligation Or Assignment Arising Under Or Flowing From Any Law Or Contract Of Employment Or Service Rules Or Standing Orders, Settlements Or Awards Or Improper Conduct Or Wrongful Behavior Is A Misconduct And Comes Under Zero Tolerance Policy Of TR.**



**You commit any breach of you duties and responsibilities under this contract of service;**

You are guilty of any gross default or misconduct, which contravenes the express or implied conditions of your employment; and you commit breach of any of the terms of this appointment letter if you breach the Commitment Agreement and Employment Confidentiality Agreement.

In general, the employment may be terminated by the company at any time by giving to the other, one month notice or one month gross salary in lieu of notice. Notwithstanding the above condition, the contract of service may also be terminated

because of under mentioned stipulations. This will be without payment of any compensation.

#### Code of Conduct

You are expected to operate with the highest degree of initiative, economy, efficiency and responsibility, you will at all times act bearing in mind the best interests of the company and will not do or say anything which Compromises the company's goal or reputations.

**RESEARCHVIA PVT. LTD.**

Research Analyst

The company expects you to respect all matters, which are intellectual property, Rights of your current employer, and strongly discourages you to bring into the organization, Manuals, documents, soft copy, papers, memo and files etc., which are classified.

As regards termination of employment for disciplinary reasons, some instances of **misconduct** which may justify dismissal without notice and any compensation in lieu of notice are listed here;

Willful insubordination or disobedience; theft, fraud or dishonesty; willful damage or loss of employer's property; bribery; wrong commitment to clients, habitual lateness or absence; and striking unlawfully; harassment; violating the terms & conditions of appointment; violating the terms & conditions of SEBI guidelines for Research Analyst, working against the interest of organization. If in case the individual during the course of employment does not work as per SEBI guidelines for Company, wherein causing the damage to the employer's brand image and loss of any property or client the individual will be solely responsible for such act and will be responsible to provide the compensation arise due to his/her misconduct.



Penalty: Enquiry will be made on his major proceedings. Charge sheet to be filed and will be processed for Legal proceedings.

**Termination of employment on immediate basis. Company will not be liable to pay anything and the concerned employee will not be eligible to receive any kind of remuneration or relieving documents because of his/her misconduct.**

Further, if at any time it is found that you have made any false statement or produced false documents, your services are liable to be terminated without notice. In case of any disciplinary action, theft or misconduct, the entire amount due to him/her must be recovered.

### **Physical and Mental Fitness**

You need to mention all the Medical illness or ailments if any before joining. In case of any disease or ailments, you need to submit the medical reports regarding it. After joining, the Management may, at its discretion, direct the employee to be examined by the Company's Medical Officer or by a Medical Practitioner specified by them on this behalf.

If any such examination shows that the employee is suffering from any disease or complaint that is incurable or not curable within a period of six months, the Management shall be entitled to terminate the service of the employee. This appointment shall be subject to your being found and certified physically and mentally fit. Further you are required to maintain yourself in a state of medical fitness (physical & mental). In case at any particular point of time you are found medically unfit during your services, the Company will be liable for termination without any notice or payment in lieu thereof.

### **Smoking, Alcohol and substance abuse or misuse**

Passive smoking can impact on other employees, the community and create a poor image of SP Researchvia PVT.LTD which does not promote or encourage smoking. Smoking is not permitted in Office Premises owned or leased vehicles or buildings. Employees must ensure that the safety and health of other employees, volunteers and clients are not endangered by any misuse.

Organization expects employees to perform their jobs with skill, care and diligence. Employees should not perform any act or omission that is likely to have a detrimental effect on their work performance and that of other employees and clients.

Accordingly, employees should not be under the influence of alcohol or other substances while they are at work or at work functions. Possession, use or trafficking in illegal drugs on the premises is not permitted. The SP Researchvia PVT. LTD premises include but are not limited to all buildings, vehicles, car parks, meeting rooms, and open spaces. Any such activity will be immediately referred to the legal action and the SP Researchvia PVT. LTD may take disciplinary action, which may include



### IT Security Practice and Procedures:

While you are in the services of the company you will strictly adhere to the IT security practices and procedures as prescribed by SP Researchvia PVT. LTD. Any instance/s of violation or any attempted violation of the aforesaid IT security practices and procedures on your part shall result in undisciplinatory action.

### Annexure - B

#### Legal Conditions of Work:

- You are expected to devote your whole time, skill and attention during working hours to your work for the Company. You must not engage in any other work outside working hours, full or part time, paid or unpaid, without the prior written permission of the management. Permission will not be granted for you to engage in any activity which the Company believes to be direct or indirect competition with the Company's business or which in the Company's view does or might impair your ability to perform your duties for the Company fully and efficiently without the prior written consent of the company.
- You will have no objection to working extra hours in the morning and or the evening according to the requirements of the job if required.
- You will carry out your duties with diligence and loyalty at all times, keeping the company's interest paramount.
- **Non-Disclosure Agreement:** During the course of your employment with us you will have access to confidential/proprietary information about the organization, its clients, its business transactions, and associated companies. You shall not during your course of Employment after you have ceased to be in the employment of this organization, disclose such confidential/proprietary information to any third party and /or any unauthorized person. All notes and memoranda pertaining to this organization trade secrets and confidential/proprietary information made by or acquired by you during the course of your employment shall at all times remain the property of this organization. Upon termination of your employment, you shall return all notes/memoranda and any copies thereof to organization that you may have obtained during the course of your employment.



You are obliged to sign a non-disclosure agreement specific to a particular client as and when required by the organization. Prior to joining the organization, you will ensure that you will be free from any contractual restrictions preventing you from accepting this offer or starting work on the joining date.

- You shall not under any circumstances either directly or indirectly, receive or accept for your own behalf any commission, rebate, discount or profit from any person, company, or firm having business transactions with SP Researchvia PVT. LTD.
- During your employment you will be bound by the company's Rules and Regulations framed and enforced from time to time. The company reserves the right to amend or alter the said Rules and Regulations at its discretion, without any notice thereof, and these will be deemed as Rules and Regulations in terms of your employment.
- Please note that during the course of your services with the company or in the event of cessation of your services in future, due to any reason whatsoever, you shall directly or indirectly, either on your own accord or on behalf or in conjunction with any other person/s, firm or company refrain/ desist from canvassing or soliciting or attempting to or inducing any employee(s)/business associate(s) to leave their current employment with SP Researchvia PVT. LTD to join the services of your new employer/firm/company or any other competitor of SP Researchvia PVT. LTD. Any act in contravention of the above provision shall entail initiation of appropriate action as deemed fit by the Company.
- The company shall verify the facts stated by you in your resume submitted during the interview process. If any of the facts stated therein are found to be false, your services will be terminated immediately without any notice or any compensation in lieu of the notice period;
- Please note that during the course of your service with SP Researchvia PVT. LTD you cannot be a member of any antisocial/national outfits or of any outfits which are declared as banned by the government. Any act in breach of this term would entail initiation of appropriate action as deemed fit by the organization.
- Please note that while joining the services or during the course of your services with SP Researchvia PVT.LTD , you will be required to notify the company immediately with details of civil or criminal case/s instituted against you in any Court of Law or any complaint/show cause notice/ prosecution with/by any Police Station or by any statutory authority, as also you will notify any outcome of such complaints like filing of Charge sheet/Arrest/Conviction/Acquittal/Discharge. Any act in breach of this term would entail initiation of appropriate action as deemed fit by the organization.



- Company expects resolution of issue/s relating to your employment, if any, within the framework internally, at all times during your service period and even after cessation of service due to any reason whatsoever.
- Please note that any attempt to bring any outside influence- directly or indirectly –upon any authority to further your interest/s in respect of matters pertaining your services with the company would amount to breach of employment contract leading to initiation of appropriate action.
- Please note that during the course of your services with the company, you will not take part in any demonstration/ agitation against the company and its official/s for or on behalf of any external bodies/ political outfits -either as a member or as a sympathizer. Any act in contravention of the above would be treated as prejudicial to the interest and reputation of the company leading to initiation of appropriate action.
- This appointment letter is governed by and shall be construed in accordance with the laws of India, and both parties to this appointment letter shall submit to the exclusive jurisdiction of the Indian courts. This appointment letter contains the entire understanding between the parties and supersedes all previous agreements and/or arrangements relating to employment with SP Researchvia PVT. LTD. Any amendment or modification to this appointment letter shall be made in writing and signed by both the parties.
- The terms and conditions of service are confidential and may not disclose to or discussed with anyone. You will be required to abide by the rules and regulations applicable to all employees of the company.
- We are consciously endeavoring to build an atmosphere of trust, openness, responsiveness, autonomy and growth among all members of the SP Researchvia PVT. LTD Organization. As a new entrant, we would like you to wholeheartedly contribute to this process.
- This letter contributes to the complete understanding between you and the company regarding terms of employment with the company. This supersedes any and all other agreements either written or oral between you and the company regarding your employment. Any modification of this agreement will be effective only if it is in writing signed by both the parties.
- No amendment or alterations to the terms and conditions of the Agreement shall be valid unless mutually agreed in writing and signed by both the Employer and the Employee. Any terms and conditions not specifically covered under the agreement are the internal rules and regulation of the Employing Company shall be governed.



Breach of any of the above terms and conditions will render you liable to termination of your employment without notice or compensation thereof. All other terms and conditions will be governed by the company's policies. Code of conduct, rules and regulations as stated from time to time.

We take great pleasure in welcoming you to our Organization and sincerely hope that period or service with us will be long, pleasant and of mutual benefit.

I do hereby agree and declare that the above statements and declaration shall be the basis of contract and assurance between me and SP Researchvia PVT.LTD. I agree that in case the company finds at any time to try to breach the contract or find in contravention of any above provisions, the company will have the right to withdraw my letter of appointment or to terminate my appointment at any time without notice or compensation or take any action as deemed fit by the organization. I have read and understood the terms and conditions mentioned in this letter of appointment and I hereby confirm unconditional acceptance of the same voluntarily. I hereby understand and agree that it's my responsibility to obtain, read and understand terms and conditions related to employment. I confirmed that all the employment related details have been explained to me by HR and I agree to comply with the rules. I hereby declare that all the information given is true to the best of my knowledge. I agree to abide by the rules and regulations as determined by SP Researchvia PVT.LTD from time to time.

**Accepted and Agreed Name: -**

**NAME SALES EXEC AMIT**

**(Signature with Date)**